

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

WAYMON MITCHELL,

Plaintiff,

-against-

THE CITY OF NEW YORK,
ROY ABOUNAOUM and SCOTT WARD,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 16, 2014

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: 100 Church Street, New York, NY 10007

P.O. Roy Abounaoum: c/o NYPD's 6th Pct., 233 West 10th Street, New York, NY 10014

P.O. Scott Ward: c/o NYPD's 6th Pct., 233 West 10th Street, New York, NY 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
WAYMON MITCHELL,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
ROY ABOUNAOUM and SCOTT WARD,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
3. That at all times herein mentioned, defendant Roy Abounaoum (hereinafter “Abounaoum”) was and is a police officer employed by the NYPD.
4. That at all times herein mentioned, Abounaoum was acting within the course and scope of his employment with the NYPD.
5. That at all times herein mentioned, Abounaoum was acting under color of state law.

6. That at all times herein mentioned, defendant Scott Ward (hereinafter "Ward") was and is a police officer employed by the NYPD.

7. That at all times herein mentioned, Ward was acting within the course and scope of his employment with the NYPD.

8. That at all times herein mentioned, Ward was acting under color of state law.

THE FACTS

9. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

10. That on August 2, 2012, in the County of New York, City and State of New York, Abounaoum and Ward were effecting an arrest of plaintiff.

11. That on August 2, 2012, while they were effecting an arrest of plaintiff, Abounaoum and Ward used force against plaintiff that was excessive and was neither necessary nor justified under the circumstances.

12. That Abounaoum and Ward, among other actions, threw plaintiff to the ground, punched and kicked plaintiff multiple times, and continued to punch and kick plaintiff even after plaintiff was fully restrained and in handcuffs and not in any manner resisting arrest.

13. That throughout the time during which they used excessive force against plaintiff, Abounaoum and Ward had the ability and opportunity to intervene and prevent his fellow officer from continuing his use of excessive force against plaintiff.

14. That despite having the opportunity to intervene and prevent his fellow officer from continuing his use of excessive force against plaintiff, Abounaoum and Ward intentionally failed to do so.

15. That as a result of the aforementioned actions of Abounaoum and Ward,

plaintiff sustained serious physical injuries, including but not limited to a fractured rib and a lacerated liver.

16. That the actions of Abounaoum and Ward were intentional, malicious, and sadistic in nature.

FIRST CAUSE OF ACTION AGAINST ABOUNAOUM and WARD
(Excessive Force: 42 U.S.C. § 1983)

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That the aforementioned actions of Abounaoum and Ward in using excessive force against plaintiff constituted a violation of plaintiff's rights under the Fourth, Eighth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST ABOUNAOUM and WARD
(Failure to Intervene: 42 U.S.C. § 1983)

19. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

20. That the aforementioned actions of Abounaoum and Ward in failing and refusing to intervene to prevent the continued use of excessive force against plaintiff constituted the permitting and allowing of a violation of plaintiff's rights under the Fourth, Eighth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST THE CITY
("Monell" Claim)

21. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

22. That the aforesaid actions of Abounaoum and Ward and the resulting injuries to plaintiff resulted from a deliberate indifference by the City to a pattern of unconstitutional conduct by Abounaoum and Ward.

23. That prior to August 2, 2012 Abounaoum and Ward had been the subject of numerous complaint and lawsuits alleging use of excessive force and abuse of authority.

24. That despite these prior complaints and lawsuits against Abounaoum and Ward, the City failed and refused to take corrective measures to discipline or train Abounaoum and Ward so as to prevent these defendants from violating the constitutional rights of other citizens of the State of New York.

25. That this deliberate indifference by the City to a pattern of unconstitutional conduct by Abounaoum and Ward entitles plaintiff to recover damages from the City pursuant to 42 U.S.C. § 1983.

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26. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

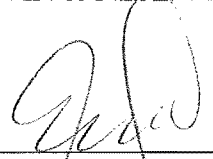
WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the individual police officers in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter,

and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
January 16, 2014

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

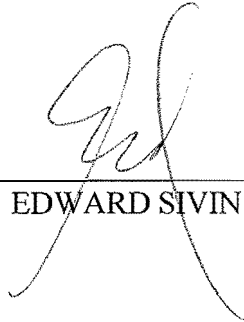
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
January 16, 2014



EDWARD SIVIN

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WAYMAN MITCHELL

Plaintiff,

-against-

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Defendants.

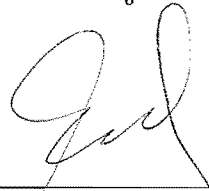
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

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20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
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Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
January 16, 2014